

25STCV33264 25STCV33264

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-06-23

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Case Number: 25STCV33264 Hearing Date: June 23, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

victor m carpio

;

Plaintiffs,

vs.

general motors llc

, et al.;

Defendants.

Case

No.:

25STCV33264

Hearing

Date:

June

23, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

defendant general motors llc's motion to

strike portions of plaintiff's complaint for non-compliance with ccp § 871.24

MOVING PARTY: Defendant General Motors LLC

RESPONDING PARTIES: Plaintiff Victor M Carpio

Motion to Strike Portions of Plaintiff's Complaint for Non-Compliance

with CCP § 871.24

The court considered the moving, opposition and reply papers filed in

connection with the motion to strike.

BACKGROUND

Plaintiff Victor M Carpio

("Plaintiff") filed the Complaint in this action against defendant General

Motors LLC ("Defendant") on November 13, 2025.

Defendant now moves the court

for an order to strike designated portions of the Complaint filed by Plaintiff

pursuant to Code of Civil Procedure sections 435 and 436 on the ground that the

Complaint contains improperly pled requests for civil penalties in violation of

Code of Civil Procedure section 871.24.

DISCUSSION

Defendant moves the court for an order striking paragraphs 29, 30, 31,

36, 39, and subdivision (f) of the Prayer for civil penalties.

The court denies Defendant's motion to strike because Plaintiff has

alleged that he requested a buyback and/or restitution of the 2021 GMC Sierra

1500 ("Subject Vehicle") from Defendant on August 20, 2025. (Compl. ¶ 24.) (Code Civ. Proc., § 871.24, subd. (a), ["At

least 30 days prior to the commencement of an action seeking civil penalties

under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do

all of the following: (1) Notify the manufacturer of the consumer's name, the

accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a

brief summary of the repair history and problems with the motor vehicle. (2) Demand that the manufacturer repurchase

or replace the motor vehicle"].)

Defendant argues that Plaintiff has failed to allege any facts that

Plaintiff was in possession of the Subject Vehicle at the time he sent the

notice, or as to how Plaintiff sent the notice to Defendant because Plaintiff

is required to make these showings pursuant to subdivisions (b) and (c) of Code

of Civil Procedure section 871.24 in order to be awarded civil penalties. However, Defendant has failed to show that there

is any pleading standard for civil penalties in Song-Beverly Consumer Warranty

Act actions that require Plaintiff to include these allegations in the

complaint.

Furthermore, Code of Civil Procedure section 871.26 provides that,

within 60 days after the filing of a responsive pleading, all parties shall

provide initial disclosures including “[w]hether the plaintiff has had any

pre-suit communications with the manufacturer, including, but not limited to,

any restitution or replacement request.” (Code Civ. Proc., § 871.26, subds., (b),

(g)(10).) Thus, the Legislature has

already contemplated the manner in which a manufacturer will receive

information regarding restitution or replacement requests and has found that

initial disclosures within 60 days after filing of a responsive pleading is

sufficient.

ORDER

The court denies defendant General

Motors LLC's motion to strike portions of plaintiff Victor M Carpio's complaint

for non-compliance with CCP § 871.24.

The court orders plaintiff Victor M Carpio to give

notice of this ruling.

IT IS SO ORDERED.

DATED: June 23, 2026

Robert

B. Broadbelt III

Judge

of the Superior Court